

**Superior Court of the State of California
County of Orange**

**TENTATIVE RULINGS FOR DEPARTMENT C32
JUDGE LEE L. GABRIEL, Dept. C32**

Date: September 1, 2026

APPEARANCES: Department C32 conducts non-evidentiary proceedings, such as law and motion, remotely, by Zoom videoconference. All counsel and self-represented parties appearing for such hearings must check-in online through the Court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Check-in instructions and instructional video are available at <https://www.occourts.org/mediarelations/aci.html>. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" ("Appearance Procedures") and "Guidelines for Remote Appearances" ("Guidelines") are also available at <https://www.occourts.org/mediarelations/aci.html>.

Parties preferring to appear in-person for law and motion hearings may do so pursuant to Code of Civil Procedure § 367.75 and OCLR 375.

All hearings are open to the public.

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- Civil Court Reporter Pooling; and
- Court Reporter Interpreter Services

These are the Court's tentative rulings. They may become an order if the parties do not appear at the hearing. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

If the parties agree to submit on the Court's tentative rulings, please call the Court Clerk to inform the court that all parties submit on the Court's tentative ruling **(657-622-5232)**. The tentative ruling will then become the order of the Court upon a party or parties informing the Court that all parties submit to the Court's tentative ruling.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

#	Case Name	Tentative
1.	BUENO PADILLA VS. KNOTT'S BERRY FARM, LLC 2024-01371175	MOTION TO COMPEL DEPOSITION (ORAL OR WRITTEN) Plaintiff Kimberly Bueno-Padilla's Motion to Compel Defendants' Person Most Qualified Deposition and Production of Documents is DENIED. Code of Civil Procedure section 2025.450, subdivision (a) provides: " If, after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice." On 4/3/25, 2/2/26, and 5/6/26, Plaintiff served deposition notices for Defendants' Persons Most Knowledgeable (Kim Decl., ¶ 4, Ex. A.) Defendants served objections to the notices on 5/28/25, 2/26/26, and 5/22/26 on the grounds they were unilaterally noticed and defense counsel and/or the witnesses were unavailable. (Byrne Decl., ¶¶ 3-5; Kim Decl., Exs. B, D.) Plaintiff contends Defendants did not provide alternate dates for deposition following their objections on 2/26/26 and 5/22/26. (Kim Decl., ¶¶ 9, 11, 15, 17.) The most recent deposition notice served on 5/6/26 noticed the deposition for 6/2/26. (Kim Decl., Ex. A.) With respect to Defendants' objections to this notice served on 5/22/26, Plaintiff's counsel stated she requested Defendants provide alternative dates by the end of business on 5/26/26 and Defendants did not respond. (Kim Decl., ¶ 17.) Plaintiff then filed this motion the next day on 5/27/26. As an initial matter, Defendants contend the notices are deficient as they fail to specify which defendant they are directed to and because the categories of testimony are overbroad, cover irrelevant topics, and are not described with reasonable particularity as required by Code of Civil Procedure section 2025.230. Code of Civil Procedure section 2025.401 provides "Any party served with a deposition notice that does not comply with Article 2 (commencing with Section 2025.210) waives any error or irregularity unless that party promptly serves a written objection

		specifying that error or irregularity at least three calendar days prior to the date for which the deposition is scheduled, on the party seeking to take the deposition and any other attorney or party on whom the deposition notice was served.” As discussed above, Defendants objected to the notices on the grounds they were unilaterally noticed and defense counsel and/or the witnesses were unavailable. (Byrne Decl., ¶ 3, Kim Decl., Exs. B, D.) As Defendants did not previously object on the grounds Plaintiff’s notices failed to specify a defendant or to comply with section 2025.230, those objections are waived. Under Code of Civil Procedure section 2025.450, however, a party may compel a deponent’s testimony if the deponent fails to appear “without having served a valid objection under Section 2025.410.” Though Plaintiff contends Defendants objections were made in bad faith, Plaintiff does not dispute they were timely served in response to each of the deposition notices and thus cannot rely on section 2025.450 to compel Defendants’ attendance. Moreover, to the extent Plaintiff relies on section 2025.480, that section applies where the deponent “fails to answer any question or to produce any document, electronically stored information, or tangible thing under the deponent’s control that is specified in the deposition notice or a deposition subpoena.” The motion “shall be made no later than 60 days after the completion of the record of the deposition, and shall be accompanied by a meet and confer declaration under Section 2016.040.” As no deposition took place section 2025.480 is also inapplicable.
2.	SAHAKYAN VS. BMW OF NORTH AMERICA, LLC 2025-01531402	1. MOTION TO COMPEL FURTHER RESPONSES TO FORM INTERROGATORIES Plaintiff Grigor Sahakyan’s motion to compel defendant BMW of North America, LLC (“BMW”) to provide further responses to Form Interrogatories 12.1, 15.1 and 17.1 (Set One), is CONTINUED to 10/13/26 at 9:00 a.m., in Dept. C32. BMW failed to participate in the meet and confer process in good faith. Although in response to Plaintiff’s initial meet and confer letter dated February 13, 2026, BMW’s counsel engaged in a telephonic conference with Plaintiff’s counsel, BMW’s counsel failed to respond to the meet and confer letters subsequently sent by Plaintiff’s counsel on February 26, 2026 and March 11, 2026. (Faulk Decl., ¶¶ 5, 6, 8, 9.) BMW is ordered to meet and confer in good faith either telephonically or in-person with Plaintiff to attempt to resolve each issue presented by Plaintiff’s Motion. No later than 9 court days prior to the continued

hearing, the parties are to file a Joint Statement which shall (1) describe the parties' attempts to meet and confer pursuant to this order, (2) identify each discovery request that remains in dispute, and (3) each party's position on the discovery request that remains in dispute.

Plaintiff to give notice.

2. MOTION TO COMPEL FURTHER RESONSES TO SPECIAL INTERROGATORIES

Plaintiff Grigor Sahakyan moves to compel defendant BMW of North America, LLC ("BMW"), to provide further responses to Special Interrogatories 2, 5, 9-13, 15-18, 21, 22, 25-29, 32 and 36 (Set One), is CONTINUED to 10/13/26 at 9:00 a.m., in Dept. C32.

The rule requiring a good faith effort to meet and confer about discovery disputes "is designed to encourage the parties to work out their differences informally so as to avoid the necessity for a formal order . . . [t]his, in turn, will lessen the burden on the court and reduce the unnecessary expenditure of resources by litigants through promotion of informal, extrajudicial resolution of discovery disputes." (*Stewart v. Colonial Western Agency, Inc.* (2001) 87 Cal.App.4th 1006, 1016.) "A reasonable and good-faith attempt at informal resolution entails something more than bickering . . . Rather, the law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate." (*Townsend v. Superior Court* (1998) 61 Cal. App. 4th 1431, 1439.)

BMW failed to participate in the meet and confer process in good faith. Although in response to Plaintiff's initial meet and confer letter dated February 13, 2026, BMW's counsel engaged in a telephonic conference with Plaintiff's counsel, BMW's counsel failed to respond to the meet and confer letters subsequently sent by Plaintiff's counsel on February 26, 2026 and March 11, 2026. (Faulk Decl., ¶¶ 5, 6, 8, 9.)

BMW is ordered to meet and confer in good faith either telephonically or in-person with Plaintiff to attempt to resolve each issue presented by Plaintiff's Motion. No later than 9 court days prior to the continued hearing, the parties are to file a Joint Statement which shall (1) describe the parties' attempts to meet and confer pursuant to this order, (2) identify each discovery request that remains in dispute, and (3) each party's position on the discovery request that remains in dispute.

Plaintiff to give notice.

3. MOTION TO COMPEL PRODUCTION

		Plaintiff Grigor Sahakyan moves to compel defendant BMW of North America, LLC, to provide further responses to Requests for Production 9, 10, 24, 26, 27 and 32 (Set One), is CONTINUED to 10/13/26 at 9:00 a.m. in Dept. C32. BMW failed to participate in the meet and confer process in good faith. Although in response to Plaintiff's initial meet and confer letter dated February 13, 2026, BMW's counsel engaged in a telephonic conference with Plaintiff's counsel, BMW's counsel failed to respond to the meet and confer letters subsequently sent by Plaintiff's counsel on February 26, 2026 and March 11, 2026. (Faulk Decl., ¶¶ 5, 6, 8, 9.) BMW is ordered to meet and confer in good faith either telephonically or in-person with Plaintiff to attempt to resolve each issue presented by Plaintiff's Motion. No later than 9 court days prior to the continued hearing, the parties are to file a Joint Statement which shall (1) describe the parties' attempts to meet and confer pursuant to this order, (2) identify each discovery request that remains in dispute, and (3) each party's position on the discovery request that remains in dispute. Plaintiff to give notice.
3.	REVENUE CORP. VS. CORTEZ 2025-01531657	1. MOTION TO COMPEL ANSWERS TO FORM INTERROGATORIES 2. MOTION TO COMPEL ANSWERS TO SPECIAL INTERROGATORIES 3. MOTION TO COMPEL PRODUCTION 4. MOTION TO COMPEL RESPONSE TO REQUESTS FOR ADMISSIONS Plaintiff Revenue Corp.'s motions to compel defendant John Cortez to provide further responses to Plaintiff's (1) Special Interrogatories, Set One; (2) Form Interrogatories, Set One; (3) Requests for Admission, Set One; and (4) Requests for Production of Documents, Set One, is COTINUED to 10/6/26 at 9:00 a.m., in Dept. C32. The Court will rule on Defendants Demurrer first and determine whether this action is subject to abatement or a stay before ruling on the discovery issues which may be mooted by the court's ruling on the Demurrer. Plaintiff to give notice.
4.	MORRIS VS. ASSA ABLOY ENTRANCE SYSTEMS US, INC. 2025-14998712	MOTION FOR LEAVE TO FILE AMENDED COMPLAINT Plaintiff Tisa Morris' Motion for Leave to File a First Complaint is DENIED without prejudice.

Legal Standard

“The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading” (Code Civ. Proc., § 473, subd. (a)(1).)

“Motions for leave to amend are directed to the sound discretion of the judge” (*Howard v. County of San Diego* (2010) 184 Cal.App.4th 1422, 1428 [citing Code Civ. Proc., § 473, subd. (a)(1).] “[T]he court’s discretion will usually be exercised liberally to permit amendment of the pleadings. The policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified.” (*Ibid.*, [citations omitted].)

California Rules of Court, rule 3.1324, subdivision (b), provides a motion to amend must be accompanied by a declaration setting forth the effect of the amendment, why it is necessary and proper, when facts giving rise to the amended allegations were discovered, and the reasons why the request for amendment was not made earlier.

Plaintiff seeks an order granting leave to file a first amended complaint to assert two additional causes of action, interference and retaliation in violation of the California Family Rights Act (CFRA). Plaintiff contends there is no prejudice to Defendant as the two causes of action are based upon the same general facts as the original complaint and involve the same Defendant and incident, i.e., Plaintiff’s alleged wrongful termination.

Defendant contends the proposed amendments would be futile as Plaintiff was not eligible for CFRA leave and thus lacks standing to bring the claims. Specifically, Defendant refers to paragraph 17 of Plaintiff’s proposed amended complaint, which states in part:

Conveniently, though Defendant had previously ignored Plaintiff’s doctor’s recommendations that she take medical leave, Defendant’s decided to allow Morris to take medical leave *less than three weeks before Plaintiff would have qualified for protected CFRA leave*. Plaintiff is informed and believes, and based thereon alleges, that Defendant approved Plaintiff’s medical leave at this time to prevent her from qualifying for an additional 12 weeks of protected CFRA leave.

(Katz Decl., Ex. F [emphasis in original].)

California Code of Regulations, title 2, section 11094, subdivision (a) provides: “Any violation of CFRA or its implementing regulations constitutes interfering with, restraining, or denying the exercise of rights provided by CFRA.” Section 11094 further states “interfering” with the exercise of an employee’s rights includes “an

		action by a covered employer to avoid responsibilities under CFRA.” Accordingly, Defendant has not demonstrated Plaintiff’s proposed amendment would be futile. While Defendant also contends Defendant provided her with leave that exceeded the time CFRA would have required, that is a factual determination not appropriate for purposes of this motion. Defendant further contends Plaintiff has not complied with California Rules of Court, rule 3.1324, subdivision (b). Plaintiff’s counsel’s declaration submitted in support of the motion states on or about 1/12/26, the parties participated in mediation and “[t]hrough the course of preparing for mediation, Plaintiff learned additional facts supporting claims for interference and retaliation in violation of the CFRA.” (Katz Decl., ¶ 5.) Counsel’s statement that facts were discovered while “preparing for mediation” is ambiguous and does not adequately identify when such facts were discovered. Similarly, Plaintiff’s declaration does not address why the request for amendment was not made earlier.
5.	STS FOUNDATION, A NOT-FOR-PROFIT CORPORATION VS. READ 2025-01537238	1. MOTION TO QUASH SERVICE OF SUMMONS Defendant John Crist’s Motion to Quash Service of Summons for Lack of Personal Jurisdiction is GRANTED. Crist is dismissed from the action for lack of personal jurisdiction. “A defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion for one or more of the following purposes: [¶] (1) To quash service of summons on the ground of lack of jurisdiction of the court over him or her.” (Code Civ. Proc., § 418.10(a)(1).) “[W]hen jurisdiction is challenged by a nonresident defendant, the burden of proof is upon the plaintiff to demonstrate that ‘minimum contacts’ exist between defendant and the forum state to justify imposition of personal jurisdiction.” (<i>Mihlon v. Sup.Ct.</i> (1985) 169 Cal.App.3d 703, 710.) The burden of proof is a preponderance of the evidence. (<i>Buchanan v. Soto</i> (2015) 241 Cal.App.4th 1353, 1362.) The evidence that jurisdiction is proper must be proved by admissible evidence. (<i>Rivelli v. Hemm</i> (2021) 67 Cal.App.5th 380, 402.) Plaintiff has not opposed this Motion and, thus, has not submitted any admissible evidence of jurisdictional facts sufficient to establish personal jurisdiction over Crist. Thus, Plaintiff has failed to satisfy its burden of proof and jurisdiction cannot be established. Therefore, Crist’s Motion is granted.

		2. MOTION TO QUASH SERVICE OF SUMMONS Defendant International Cultural Exchange Services, Inc.’s (Cultural Exchange) Motion to Quash Service of Summons for Lack of Personal Jurisdiction is GRANTED. Cultural Exchange is dismissed from the action for lack of personal jurisdiction. Plaintiff has not opposed this Motion and, thus, has not submitted any admissible evidence of jurisdictional facts sufficient to establish personal jurisdiction over Cultural Exchange. Thus, Plaintiff has failed to satisfy its burden of proof and jurisdiction cannot be established. Therefore, Cultural Exchange’s Motion is granted.
6.	MONTE MAC NO. 1 VS. POTTER 2024-014440030	MOTION FOR LEAVE TO FILE AMENDED COMPLAINT Plaintiff Monte Mac No. 1, LP’s Motion for Leave to file a Second Amended Complaint is GRANTED. Plaintiff Monte Mac No. 1, LP (“MM1”) seeks leave to file a Second Amended Complaint (“SAC”) to add two causes of action for breach of contract/failure to negotiate in good faith [letter agreement] and promissory estoppel, provide further context regarding the nature of MM1’s claims, and add allegations regarding alleged misconduct by Defendants that post-dates MM1’s FAC. Defendants Jeffery W. Potter, as Trustee of the Jeffery W. Potter Trust Created Under the Bypass Trust of the Robert and Elizabeth Potter Living Trust Dated September 11, 2001, and as Trustee of the Jeffery W. Potter Trust Created Under the Surviving Trustor’s Trust of the Robert and Elizabeth Potter Living Trust Dated September 11, 2001 (collectively, “Potter”) opposes the motion arguing unexplained delay, futility and prejudice. The court may, in the furtherance of justice, and on such terms as may be proper, allow amendment of a complaint at any time before or after commencement of trial. (Code Civ. Proc. §§ 473(a)(1), 576.) There is a general policy of great liberality in allowing amendment of pleadings at any stage of the litigation. (<i>Hirsa v. Superior Court</i> (1981) 118 Cal.App.3d 486, 488.) Denial is rarely justified. (<i>Morgan v. Sup.Ct.</i> (1959) 172 Cal.App.2d 527, 530.) Here, MM1’s Motion complies with California Rules of Court, Rule 3.1324. The motion is supported by a declaration from its counsel who declares that amendment is necessary so that the operative pleading more accurately reflects the parties’ agreements, as well as the conduct forming MM1’s grounds for relief. (Loh ¶ 7.) MM1’s counsel further declares that the issues raised in Potter’s pending Motion for Judgment on the Pleadings (“MJOP”) further suggest that leave to amend is warranted to the extent that Potter contends

that there is any further context required to demonstrate that MM1's claims are sufficiently well-pled. (Loh Decl., ¶ 10.)

MM1's counsel explains they did not seek leave to amend sooner because they substituted into the case on 4/16/26. (Loh Decl., ¶ 5.) Counsel declares they needed time to review the extensive file, investigate the relevant communications and subsequent events, analyze the distinct contractual obligations implicated by the facts, prepare the proposed SAC and accompanying comparison materials, and address Potter's new action. (Loh Decl., ¶ 10.) More specifically, to assess the nature of the dispute between the parties, MM1's new counsel reviewed the pleadings, agreements, court filings and hundreds of emails and letters between the parties and their counsel. (Loh Decl., ¶ 6.) During that review, which continued through May 2026, they identified conduct occurring after the First Amended Complaint ("FAC") was filed that bears directly on MM1's claims in this action. (Loh Decl., ¶ 6.) Counsel also identified certain benefits to amending the operative complaint to better address MM1's causes of action. (Loh Decl., ¶ 6.)

While preparing the SAC, MM1's new counsel learned that Potter sued MM1 and its general partner, among others, in a related action on 4/15/26 and filed an ex parte application on 5/28/26 for a temporary restraining order and the appointment of a receiver. (Loh Decl., ¶ 8, Ex. C.) As such, their time and attention were diverted from preparing and filing the instant Motion to attending to those items. (Loh Decl., ¶ 8.)

On 6/4/26, MM1 emailed the proposed SAC to Potter along with a Stipulation to file the SAC. (Loh Decl., ¶ 9, Ex. D.) Potter did not respond. (Loh Decl., ¶ 9.) MM1 filed the instant motion on 6/16/26, two months after its new counsel substituted into the case. The court finds MM1 has established it diligently sought leave to amend.

Potter argues the Motion should be denied because it was filed after unwanted delay for the admitted purpose of mooted the pending MJOP. However, MM1 merely points out that the practical effect of the SAC will be to moot the MJOP. Doing so does not negate the legitimate reasons MM1 provided for the purpose of the Motion and its timing. Potter also contends the core facts on which the SAC rests were known or knowable long before new counsel appeared. Potter, however, ignores the many factual allegations in the proposed SAC that concern conduct occurring after the FAC was filed. (See, e.g., Loh Decl., Ex. A [SAC], ¶ 18.)

Even if MM1 unreasonably delayed seeking leave, Potter has not demonstrated he will be prejudiced by the amendment. Absent a showing of such prejudice, delay alone is not grounds for denial of a motion to amend. (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048; *Higgins v. Del Faro* (1981) 123

		Cal.App.3d 558, 564.) Potter generally argues it will suffer prejudice due to increased burden of discovery, added costs of preparation, and disruption of the defense. However, Potter does not identify the additional discovery needed due to the amendment. As MM1 points out, no depositions have been taken. Further, discovery remains open, trial is six months away, and Potter has had the proposed SAC since 6/4/26 and ignored the proposed stipulation to file it. Potter has had ample time to respond to the SAC, conduct discovery, and prepare for trial. The court declines to consider the validity of the proposed SAC. Potter can test its legal sufficiency in the appropriate motion after the SAC is filed. (See <i>Atkinson v. Elk Corp.</i> (2003) 109 Cal.App.4th 739, 760 [“the better course of action would have been to allow [plaintiff] to amend the complaint and then let the parties test its legal sufficiency in other appropriate proceedings”].) Based on the policy favoring leave to amend, the motion is GRANTED. Plaintiff shall file and serve the SAC within five days. Potter’s request to condition granting leave to amend on any demurrer or motion for judgment on the pleadings directed to the SAC be set for hearing on shortened time, or given calendar priority, is DENIED without prejudice to Potter filing an ex parte application for such relief concurrently or after such demurrer or judgment on the pleadings is filed.
7.	GOLDEN VS. JONES 2026-01538926	MOTION TO SET ASIDE/VACATE DEFAULT Defendants James L. Jones’ Motion to Set Aside Default is DENIED. <u>Plaintiffs’ Evidentiary Objections to the Declaration of James L. Jones</u> The Court SUSTAINS Plaintiffs’ objections as to objection number 6 and OVERRULES the remaining objections. <u>Defendant’s Evidentiary Objections to the Declarations Christopher D. Gordon and Lucas A. Urgoiti</u> The Court declines to rule on Defendant’s evidentiary objections as unnecessary to the analysis. <u>Defendant’s Compliance with California Rules of Court, Rule 3.1113, subdivision (d)</u>

Defendant alleges Plaintiffs have not complied with California Rules of Court, rule 3.1113, subdivision (d) as the opposition is 19 pages.

Rule 3.1113, subdivision (d) provides: “Except in a summary judgment or summary adjudication motion, no opening or responding memorandum may exceed 15 pages” not including the caption page, the notice of motion and motion, exhibits, declarations, attachments, the table of contents, the table of authorities, or the proof of service.”

Plaintiffs’ opposition is 15 pages excluding the caption page, table of contents, table of authorities, and proof of service and therefore complies with rule 3.1113.

Code of Civil Procedure Section 473

Code of Civil Procedure section 473, subdivision (b), permits the court to “relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect.”

“To entitle [a party] to relief the acts which brought about the default must have been the acts of a reasonably prudent person under the same circumstances.” (*Jackson v. Bank of America* (1983) 141 Cal.App.3d 55, 58 [citations omitted].) “The burden is a double one: the moving party must show a satisfactory excuse for his default, and he must show diligence in making the motion after discovery of the default.” (*Hopkins & Carley v. Gens* (2011) 200 Cal.App.4th 1401, 1410 [cleaned up].)

While “[a] default and default judgment may be set aside pursuant to the provisions of Code of Civil Procedure, section 473, subdivision (b), [] the motion must be made within six months after entry of the default.” (*Manson, Iver & York v. Black* (2009) 176 Cal.App.4th 36, 42.)

The Court entered default against Jones on 4/30/26. (ROA 27.) Defendant’s motion was filed on 7/22/26 and is therefore timely.

Defendant was aware as early as December 2025 Plaintiffs intended to sue him as they told Defendant they intended to do so. (Jones Decl., ¶ 6.) Defendant hired attorney Steven Jordan Madrid who he found on Craigslist and paid him \$1,700 to represent him. (Jones Decl., ¶ 6.) As such, until around mid-January 2026, Defendant states he believed he had an attorney who was doing everything necessary to make sure he was in legal compliance. (Jones Decl., ¶ 6.) Defendant later came to realize Madrid “was just a scammer.” (Jones Decl., ¶ 7.)

Defendant was personally served on 2/4/26. (Jones Decl., ¶ 7.) Defendant once again turned to Craigslist and hired a disbarred attorney, Ramesh Kamath, to assist him in representing himself in the action. (Jones Decl., ¶¶ 8-10, Ex. E.) Defendant contends Kamath, without a law license and without supervision by a licensed attorney, prepared and caused to be filed the Declaration of Demurring or Moving Party in Support of Automatic Extension on 3/27/26. (ROA 15.) The Declaration for Extension of Time was signed by Jones under the penalty of perjury and included the statement, “I intend to file a demurrer, motion to strike, or motion for judgment on the pleadings in this action.” (ROA 15.)

Kamath later prepared an Answer (General Denial) that Defendant signed and was submitted for filing on 5/18/26 but rejected. (Jones Decl. ¶ 8; Ex. D.) Kamath also prepared a draft motion to set aside that was never filed. (Jones Decl. ¶ 8.) In late June 2026, Defendant terminated Kamath’s engagement and was introduced to present counsel through family friends. (Jones Decl., ¶¶ 10, 13.)

“Unless in arranging for his defense he shows that he has exercised such reasonable diligence as a man of ordinary prudence usually bestows upon important business his motion for relief under section 473 will be denied.” (*Hearn v. Howard* (2009) 177 Cal.App.4th 1193, 1206.)

Defendant recognizes “he made the repeated mistake of turning to Craigslist to find that legal help because of [his] limited financial means.” (Jones Decl., ¶ 7.) Making this “repeated mistake” particularly after he contends his prior counsel also found on Craigslist “was just a scammer” does not demonstrate “reasonable diligence as a man of ordinary prudence usually bestows upon important business.” While Defendant contends he did so due to his limited financial means, Defendant does not demonstrate how his financial means precluded him from performing any due diligence with respect to his repeated search on Craigslist.

While Defendant further contends he did not know Kamath was a disbarred attorney, he acknowledges she was not hired to be his attorney, but “to provide litigation support and assist [him] in representing [himself] in this action.” (Jones Decl., ¶ 8.) Thus, Defendant demonstrates he intended to move forward representing himself in pro per rather than retain counsel, which he had done previously.

“Pro. per. litigants are held to the same standards as attorneys.” (*Kobayashi v. Superior Court* (2009) 175 Cal.App.4th 536, 543 [citations omitted].) While Defendant contends Kamath did not explain what a default was or explain what deadlines applied (Jones Decl., ¶ 9), it was not reasonable for Defendant to rely on Kamath to

provide necessary legal advice where Defendant acknowledges she was not retained as counsel and Defendant decided to proceed in for pro. For the same reason it was also not reasonable for Defendant to sign court documents, such as the Declaration for Extension of Time, without reading them.

Defendant also contends he suffers from cognitive difficulties which include extreme difficulty concentrating, organizing, completing tasks, losing important papers and other objects, making executive decisions, and reading comprehension. (Jones Decl., ¶ 3.) Jones contends he has been diagnosed with Cyclothemia, which presents symptoms similar to bipolar I disorder, but is not medicated as the medication induces suicidality. (Jones Decl., ¶¶ 3, 5.) Defendant further contends he was under extreme stress at all relevant times caused by his divorce from co-defendant L. Jones, business closures, and housing instability. (Jones Decl., ¶ 14.)

Because “every claimant is likely to be suffering from some degree of emotional upset, . . . it takes an *exceptional showing* for a claimant to establish that his or her disability reasonably prevented the taking of necessary steps.” (*Barragan v. County of Los Angeles* (2010) 184 Cal.App.4th 1373, 1385.)

Defendant does not dispute that despite these cognitive difficulties he was aware of the complaint against him and that he was able to take necessary steps in response, including initially obtaining counsel and subsequent litigation support. Defendant has further demonstrated that despite these cognitive difficulties he made the decision to represent himself in the litigation despite having previously obtained counsel. That Defendant may have been “confused” and “overwhelmed” due to those difficulties as well as other personal circumstances (Jones Decl., ¶¶ 9, 14) does not demonstrate the requisite “exceptional showing” for the relief requested.

Code of Civil Procedure Section 473.5

Defendant also moves to set aside the default pursuant to Code of Civil Procedure section 473.5.

Section 473.5, subdivision (a) provides, “The notice of motion shall be served and filed within a reasonable time, but in no event exceeding the earlier of: (i) two years after entry of a default judgment against the party; or (ii) 180 days after service on the party of a written notice that the default or default judgment has been entered.

Section 473.5, subdivision (c) provides, “Upon a finding by the court that the motion was made within the period permitted by subdivision (a) and that the party’s lack of actual notice in time to

		defend the action was not caused by the party’s avoidance of service or inexcusable neglect, it may set aside the default or default judgment on whatever terms as may be just and allow the party to defend the action.” Defendant does not dispute he was personally served on 2/24/26. (Jones Decl., ¶ 7.) Defendant also demonstrates he was aware of the action as he retained Kamath less than a month later to assist Defendant in representing himself in the action. (Jones Decl., ¶ 8.) Accordingly, the Court finds Defendant has not demonstrated lack of “actual notice” required by section 473.5.
8.	TMVG ENTERPRISES, INC. VS. WORKHORSE & UNICORN LLC 2025-01524893	1. DEMURRER TO CROSS-COMPLAINT Cross-Defendants TVMG Enterprises, Inc. and Vasili Gatsinaris’s Demurrer to the Cross-Complaint is SUSTAINED with 20 days’ leave to amend. First, the Cross-Complaint fails to comply with California Rules of Court, rule 2.111, because it does not have a proper caption on its first page. <u>Uncertainty</u> With regards to uncertainty, the court will only sustain a demurrer for uncertainty if it is so poorly drafted that defendants cannot reasonably respond. (<i>Khoury v. Maly’s of California Inc.</i> (1993) 14 Cal.App.4th 612, 616.). The Cross-Complaint is not so uncertain Cross-Defendants cannot respond. Thus, the demurrer is overruled on these grounds. <u>1st and 2nd Causes of Action – Intentional and Negligent Misrepresentation</u> “The elements of fraud, which give rise to the tort action for deceit, are (a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or scienter); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage.” (<i>Lazar v. Superior Court</i> (1996) 12 Cal.4th 631, 638 (cleaned up).) “In California, fraud must be pled specifically; general and conclusory allegations do not suffice. Thus, the policy of liberal construction of the pleadings will not ordinarily be invoked to sustain a pleading defective in any material respect. This particularity requirement necessitates pleading facts which show how, when, where, to whom, and by what means the representations were tendered.” (<i>Id.</i> at 645 (cleaned up).) “A plaintiff’s burden in asserting a fraud claim against a corporate employer is even greater. In such a case, the plaintiff must allege the names of the persons who made the allegedly fraudulent representations, their authority to

... speak, to whom they spoke, what they said or wrote, and when it was said or written.” (*Ibid.*)

Cross-Complainant has failed to sufficiently allege its fraud claim. It alleges “Cross-Defendants expressly represented to Cross-Plaintiffs that Cross Plaintiffs could legally operate a gym and fitness facility at the premises” (XC, ¶ 18.) This allegation lacks sufficient specificity as to who made the statement and when the statement was made. Additionally, as to TVMG, Cross-Complainant has not alleged who made the representation and their authority to speak for TVMG.

Thus, the demurrer to the 1st cause of action is sustained with leave to amend.

3rd Cause of Action – Breach of Contract

The elements of a claim for breach of contract are “(1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to the plaintiff.” (*D'Arrigo Bros. of California v. United Farmworkers of America* (2014) 224 Cal.App.4th 790, 800.)

Cross-Complainant have not sufficiently alleged a performance or an excuse for nonperformance.

Leave to Amend

“Unless the complaint shows on its face that it is incapable of amendment, denial of leave to amend constitutes an abuse of discretion, irrespective of whether leave to amend is requested or not.” (*McDonald v. Sup.Ct.* (1986) 180 Cal.App.3d 297, 303-304.) The Complaint does not show from its face it is incapable of being amended. Thus, leave to amend is granted.

2. MOTION TO STRIKE PORTIONS OF CROSS-COMPLAINT

Cross-Defendants TVMG Enterprises, Inc. and Vasili Gatsinaris’s Motion to Strike is CONTINUED to 11/6/26 at 9:00 a.m., in Dept. C32.

Cross-Defendants did not file a declaration of their meet and confer efforts with Cross-Complainant regarding its Motion to Strike as required by Code of Civil Procedure section 435.5(a)(3). However, “[a] determination by the court that the meet and confer process was insufficient shall not be grounds to grant or deny the motion to strike.” (Code Civ. Proc., § 435.5(a)(4).)

The parties are ordered to meet and confer within 45 days of this order. Cross-Defendants are ordered to file a declaration no later

		than 16 court days before the continued hearing date regarding the parties meet and confer efforts. Should Cross-Complainant file an amended pleading in the time provided under the Court's ruling on the demurrer, the parties need not comply with this ruling as to this motion.
10.	STEINMAN VS. FORD MOTOR COMPANY 2024-01446515	MOTION FOR SUMMARY JUDGMENT AND/OR ADJUDICATION Defendant Ford Motor Company's unopposed Motion for Summary Adjudication is GRANTED. Ford moves for summary adjudication of the sixth causes of action for fraudulent inducement – concealment. <u>Legal Standard:</u> Code of Civil Procedure section 437c(c) provides: “(c) The motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. In determining if the papers show that there is no triable issue as to any material fact, the court shall consider all of the evidence set forth in the papers, except the evidence to which objections have been made and sustained by the court, and all inferences reasonably deducible from the evidence, except summary judgment shall not be granted by the court based on inferences reasonably deducible from the evidence if contradicted by other inferences or evidence that raise a triable issue as to any material fact. Section 437c(o)-(p) states: “(o) A cause of action has no merit if either of the following exists: (1) One or more of the elements of the cause of action cannot be separately established, even if that element is separately pleaded. (2) A defendant establishes an affirmative defense to that cause of action. (p) For purposes of motions for summary judgment and summary adjudication: (1) A plaintiff or cross-complainant has met his or her burden of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on the cause of action. Once the plaintiff or cross-complainant has met that burden, the burden shifts to the defendant or cross-defendant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The defendant or cross-defendant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a

triable issue of material fact exists as to the cause of action or a defense thereto.

(2) A defendant or cross-defendant has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action. Once the defendant or cross-defendant has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The plaintiff or cross-complainant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto.”

“The pleadings define the issues to be considered on a motion for summary judgment. As to each claim as framed by the complaint, the defendant must present facts to negate an essential element or to establish a defense. Only then will the burden shift to the plaintiff to demonstrate the existence of a triable, material issue of fact.” (*Scalf v. D.B. LogHomes, Inc.* (2005) 128 Cal.App.4th 1510, 1519-1520 [cleaned-up].)

Summary of FAC:

Plaintiff alleges that on or about 3/29/23, he entered into a warranty contract with defendant Ford regarding a 2023 Ford Mustang vehicle (“Subject Vehicle”), which was manufactured and or distributed by Ford. (¶ 10.) Plaintiff purchased the Subject Vehicle from one of Ford’s authorized retail dealerships. (¶ 12.) Thereafter, Plaintiff presented the Subject Vehicle to Ford’s authorized repair facility on at least two occasions with transmission related complaints. (¶¶ 14-16.)

Prior to his purchase of the Subject Vehicle, Ford knew that a Transmission Defect (as that term is defined in the FAC) existed in vehicles equipped with the same 10-speed transmission as the Subject Vehicle. (¶¶ 34, 77.) Despite this knowledge, Ford actively concealed the Transmission Defect from Plaintiff at the time of purchase, repair, and thereafter. (¶¶ 47, 79, 80.) Ford committed fraud by allowing the Subject Vehicle to be sold to Plaintiff without disclosing that the Subject Vehicle and its transmission was defective and susceptible to sudden and premature failure. (¶ 75.) Ford was under a duty to Plaintiff to disclose the defective nature of the Subject Vehicle and its transmission, its safety consequences and/or the associated repair costs for several reasons. (¶ 81.) In failing to disclose the defects in the Subject Vehicle's transmission, Ford has knowingly and intentionally concealed material facts and breached its duty not to do so. (FAC, ¶ 82.) The concealed facts

were material. (§ 83.) Had Plaintiff known that the Subject Vehicle suffered from the Transmission Defect, he would not have purchased it or would have paid less for it. (§§ 46, 79, 83.) Plaintiff was harmed by purchasing a vehicle that he would not have purchased had he known the true facts about the Transmission Defect. (§ 87.)

Merits

“[T]he elements of an action for fraud and deceit based on concealment are: (1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.” (*Boschma v. Home Loan Center, Inc.* (2011) 198 Cal.App.4th 230, 248 [cleaned up].)

Ford contends Plaintiff cannot establish his fraudulent inducement by concealment claim because he cannot establish Ford had knowledge of a defect at the time of sale; Ford had any transactional relationship triggering any duty to disclose a known defect at the time of sale; damages as a result of Ford’s alleged concealment; and the fraudulent inducement exception to the economic loss rule.

Knowledge of Defect

“Actual fraud consists, among other things, of [t]he suppression of that which is true, by one having knowledge or belief of the fact or [a]ny other act fitted to deceive.” (*Boschma, supra*, 198 Cal.App.4th at p. 248.)

The undisputed material facts establish Plaintiff has no evidence to prove Ford had knowledge of the Transmission Defect in the Subject Vehicle before Plaintiff purchased it. (See UMF 18-24.) For example, Plaintiff produced all documents supporting his claims yet none show Ford’s pre-sale knowledge of the Transmission Defect in the Subject Vehicle. (UMF 18-20.) As another example, in response to Ford’s interrogatory requesting that Plaintiff state “all material facts that YOU allege Ford had exclusive knowledge of and failed to disclose prior to YOUR lease or purchase of the VEHICLE[.]” Plaintiff merely restated that Ford “knew” of a purported transmission defect, failed to disclose it to Plaintiff, and cited three publicly available technical service bulletins (“TSBs”) issued in March 2018, September 2018, and September 2021 relating to some 2017 and 2018 F-150 vehicles, even though the Subject Vehicle is a 2023 Mustang Mach 1. (UMF 21.) Plaintiff produced no evidence

establishing that these TSBs applied to the Subject Vehicle, demonstrate a defect or show that Ford had knowledge of any defect in the Subject Vehicle at the time of sale. (UMF 22.) Therefore, Ford has met its initial burden regarding knowledge.

Damages

Civil Code section 3343, section (a) provides, in relevant part:

“(a) One defrauded in the purchase, sale or exchange of property is entitled to recover the difference between the actual value of that with which the defrauded person parted and the actual value of that which he received, together with any additional damage arising from the particular transaction, including any of the following:

(1) Amounts actually and reasonably expended in reliance upon the fraud.

(2) An amount which would compensate the defrauded party for loss of use and enjoyment of the property to the extent that any such loss was proximately caused by the fraud.” (Civ. Code, § 3343, subd. (a)(1), (2).)

Thus, in fraud cases involving “the purchase, sale or exchange of property,” the out-of-pocket measure of damages applies. (*Alliance Mortgage Co. v. Rothwell* (1995) 10 Cal.4th 1226, 1240–1241, citing Civ. Code, § 3343, subd. (a) [footnote omitted].) As used in the statute, “actual value” means the market value of the property at the time of the purchase. (*Nece v. Bennett* (1963) 212 Cal.App.2d 494, 497-498 [reversing trial court judgment and remanding for new trial after finding the plaintiffs failed to their fraud by concealment claim because there was no substantial evidence to prove the market value of the property at the time of the purchase].)

The undisputed material facts establish Plaintiff does not allege or claim any personal injury or damage to property other than the vehicle itself and instead seeks only economic losses. (UMF 6-7.) The undisputed material facts also establish Plaintiff has no evidence to prove he sustained damages as a result of the alleged concealment. (UMF 8-17.) Therefore, Ford has met its initial burden regarding damages.

Plaintiff has not filed an opposition and, therefore, has not met his burden of establishing any triable issues of material fact.

Because Ford has established Plaintiff cannot establish at least two elements of his fraud claim, the court need not address Ford’s remaining arguments.

The motion is granted.

Defendant to give notice.

11.	LAW OFFICES OF MARK B. PLUMMER, PC VS. NETWORKSOLUTIONS.COM 2020-01141868	1. MOTION TO COMPEL FURTHER RESPONSES TO FORM INTERROGATORIES Alai’s Motion to Compel Further Responses to Form Interrogatories (FROGs) by Law Office (ROA 732) is GRANTED. Alai’s supplemental separate statement states the dispute remains as to Form Interrogatories 12.1 and 17.1. No. 12.1 seeks information regarding witnesses. Plaintiff provided substantive responses which Defendant asserts are incomplete because Defendant identifies categories of unspecified witnesses including “employees and officers of the website provider.” If Plaintiff has the contact information of such witnesses, Plaintiff must provide it or state it is unknown to Plaintiff. No. 17.1 seeks information related to Plaintiff’s responses to requests for admission. Because Plaintiff’s responses to RFAs 1-11, discussed above, were not unqualified admissions, Plaintiff must respond in detail as to facts, witnesses, and documents supporting those portions of the request which Plaintiff denies. Plaintiff shall serve further responses to Nos. 12.1 and 17.1 within seven days. The request for sanctions is denied because both sides acted with substantial justification as to this motion. 2. MOTION TO COMPEL FURTHER RESPONSES TO FORM INTERROGATORIES Alai’s Motion to Compel Further Responses to FROGs by Law Office (ROA 722) is GRANTED. As to Plummer, Alai seeks further responses to Nos. 12.1, 17.1, and 9.2. The motions are granted as to 12.1 and 17.1 for the same reasons set out above. No. 9.2 seeks identification of documents supporting Plaintiff’s damages. Plaintiff’s response includes the subject website and “all links.” Plaintiff must specifically identify each document or website he contends supports his damages. Therefore, the motion is granted as to 9.2. The request for sanctions is denied because both sides acted with substantial justification as to this motion.
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3. MOTION TO COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES

Alai's Motion to Compel Further Responses to Special Interrogatories, Set One (SPROGs) by Law Office (ROA 727) is GRANTED in part.

Defendant's supplemental separate statements states the dispute remains as to Special Interrogatory Nos. 1, 2, 3, 5, 6, 9, and 12. "Defendant narrows the remaining dispute as to Special Interrogatory No. 5 to Plaintiff's continued reference to unidentified "employees and officers of the website provider," to the extent such persons are known to Plaintiff. Defendant also narrows Special Interrogatory No. 2 to the time period January 1, 2005 to present." (p. 1.)

Nos. 1, 2, and 3 seek information regarding prior lawsuits involving Plaintiff. Nos. 5, 6, and 9 seek evidence supporting Plaintiff's damages claim. No. 12 asks Plaintiff to describe all conversations with Defendant Alai from 1/1/05 to present.

Plaintiff's responses to Nos. 1, 2, and 3 which are evasive because they "incorporate the Court's February 9, 2023 findings by reference," but do not list the requested information regarding other cases Plaintiff has been involved in, which is reasonably calculated to lead to discovery of evidence regarding whether Plaintiff is a vexatious litigant. Plaintiff shall serve complete, substantive responses without objection to Nos. 1, 2, and 3.

Nos. 5, 6, and 9 are reasonably calculated to discovery evidence of Plaintiff's claim for defamation and damages and Plaintiff's responses are evasive because Plaintiff lists categories of individuals, communications, and documents without making a reasonable effort to identify each specific witness, communication, and document responsive to the request.

No. 12 is overbroad as to time and subject matter regarding communications between the parties, especially in light of the ongoing litigation between the parties.

Therefore, Plaintiff shall serve further responses to Nos. 1, 2, 3, 5, 6, and 9 within seven days of service of notice of this order.

Defendant's request for sanctions is granted in the amount of \$1,100.00.

4. MOTION TO COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES

Alai's Motion to Compel Further Responses to SPROGs by Plummer (ROA 737) is GRANTED in part.

Thes requests and responses are substantially identical to those addressed in Motion No. 3. Therefore, for the same reasons Plaintiff shall serve further responses to Nos. 1, 2, 3, 5, 6, and 9 within seven days of service of notice of this order.

Defendant's request for sanctions is granted in the amount of \$1,100.00.

5. MOTION TO COMPEL PRODUCTION

Alai's Motion to Compel Further Responses to Requests for Production (RFPs) by Law Office (ROA 752) is GRANTED.

Defendant's supplemental separate statement seeks further responses to RFPs 1, 10, 16, and 17.

Nos. 1, and 10 seek all documents related to each lawsuit filed by Plaintiff since 2009 including all documents related to each lawsuit filed by Plaintiff against a former client. The requests are overbroad. However, Plaintiff shall produce the complaint for all lawsuits filed by Plaintiff since 2009.

No. 16 seeks all documents reflecting State Bar grievances filed against Plaintiff since 2005. Plaintiff's response states, "after a diligent search and reasonable inquiry for responsive documents within Plaintiff's possession, custody or control, Plaintiff will not comply with this request because there are no record of false and frivolous 'grievances.' (Typically, a lunatic will want to sue the government for hearing voices inside their head, and when the case is rejected, will complain about his "great case" being rejected. No record is kept of such things.)"

Plaintiff's response to No. 16 is evasive because it does not include a clear statement of compliance or inability to comply. Plaintiff must serve a complete, non-evasive response compliant with Code of Civil Procedure sections 2031.210, 2031.220, and 2031.230.

No. 17 seeks a copy of every dismissal without prejudice filed on behalf of Plaintiff since 2005. The request is reasonably calculated to lead to discovery of evidence regarding the assertion that Plaintiff is a vexatious litigant and Plaintiff has failed to substantively respond other than identifying this Court's 2/9/23 findings.

Plaintiff shall serve further substantive responses within seven days of service of notice of this order.

Defendant's request for sanctions is granted in the amount of \$1,100.00.

6. MOTION TO COMPEL PRODUCTION

Alai's Motion to Compel Further Responses to RFPs by Plummer (ROA 717) is GRANTED.

Regarding Plummer, Alai states the dispute remains regarding Requests for Production Nos. 1, 4, 5, 10, 16, and 17.

The motion is granted as to Nos. 1, 10, 16, and 17 for the reasons stated as to Motion No. 5.

Nos. 4 and 5 seek all documents related to or supporting Plaintiff's claim for damages. Plaintiff generally identifies documents produced via Sharefile in discovery. However, Plaintiff must specify each document or bates-numbered range of documents with particularity to allow Defendant to respond to his damages claim.

Plaintiff shall serve further substantive responses within seven days of service of notice of this order.

Defendant's request for sanctions is granted in the amount of \$1,100.00.

7. MOTION TO DEEM FACTS ADMITTED

Defendant Nili Alai, M.D.'s (Alai) Motion to Compel Further Responses to Requests for Admission, Set One (RFAs) from Plaintiff Law Offices of Mark B. Plummer, PC (Law Office) (ROA 711) is GRANTED in part.

Defendant filed a supplemental statement on 7/31/26 pursuant to the Court's order which states the disputed RFAs currently include Nos. 1-11.

Code of Civil Procedure section 2033.220 provides that, regarding requests for admissions,

“(b) Each answer shall:

(1) Admit so much of the matter involved in the request as is true, either as expressed in the request itself or as reasonably and clearly qualified by the responding party.

(2) Deny so much of the matter involved in the request as is untrue.

(3) Specify so much of the matter involved in the request as to the truth of which the responding party lacks sufficient information or knowledge.

(c) If a responding party gives lack of information or knowledge as a reason for a failure to admit all or part of a request for admission,

that party shall state in the answer that a reasonable inquiry concerning the matter in the particular request has been made, and that the information known or readily obtainable is insufficient to enable that party to admit the matter.”

The subject RFAs seek admissions related to other litigation involving Plaintiff, including whether such litigation was dismissed or resolved adversely to Plaintiff. The requests are reasonably calculated to lead to discovery of admissible evidence regarding the truth of Defendant’s alleged statement that Plaintiff is a vexatious litigant. (Code Civ. Proc. § 2017.010.)

Plaintiff served substantive responses to RFAs 2, 4, 5, 8, 9, 10, and 11, generally stating the subject lawsuits were dismissed in consideration for payment. These responses are sufficient under section 2033.220.

Plaintiff refused to serve substantive responses to RFAs 1, 3, 6, and 7, objecting on grounds including that the appeals were “not the type of case that would result in a ‘final determination’” as defined under Code of Civil Procedure section 577. The responses are insufficient and Plaintiff must serve supplemental responses admitting or denying whether the outcome of the appeal was adverse to Plaintiff.

Because trial is set for 9/18/26 and the trial date is firm, Plaintiff shall serve further responses within five days of service of notice of this order.

Defendant’s request for sanctions is granted in the amount of \$1,100.00.

8. MOTION TO DEEM FACTS ADMITTED

Alai’s Motion to Compel Further Responses to RFAs by Plaintiff Mark B. Plummer (Plummer) (ROA 742) is GRANTED in part.

The requests and responses in dispute are apparently identical to those addressed in Motion No. 7.

Plummer shall serve further responses to RFA Nos. 1, 3, 6, and 7 within seven days.

Defendant’s request for sanctions is granted in the amount of \$1,100.00.

9. MOTION TO QUASH SUBPOENA

Plaintiffs’ Motion to Quash Subpoena to Jocelyn Plummer is DENIED.

Plaintiffs move to quash Defendant's subpoena for business records to Jocelyn Plummer, Plaintiff Mark Plummer's wife. Plaintiffs contend the subpoena is a surreptitious attempt to conduct discovery related to other lawsuits between the parties, including Jocelyn Plummer's lawsuit for malicious prosecution against Defendant.

The subpoena seeks documents related to the permitting and construction of Plaintiffs' office. The subpoena is reasonably calculated to lead to discovery of admissible evidence regarding the alleged falsity of Defendant's statement that Plaintiffs' office is unsafe/unpermitted. (Code Civ. Proc. § 2017.010.) That such documents may have relevance in the related lawsuits does not preclude discovery of those issues which are potentially relevant in this case.

Therefore, the motion is denied. Jocelyn Plummer shall produce all responsive documents in her possession, custody, or control within seven days of this order.

10. MOTION TO QUASH SUBPOENA

Plaintiffs' Motion to Quash Defendant's Subpoena to Mark Norred is GRANTED.

Plaintiffs move to quash Defendant Alai's subpoena to Mark Norred, CPA, which seeks evidence from Plaintiff's accountant regarding this lawsuit and Plaintiff's alleged loss of revenue as well as documents regarding any lawsuit between Plaintiff and Norred.

Plaintiffs assert the subpoena seeks protected tax return information and Plaintiff has not claimed lost earnings. Plaintiff also contend Defendant failed to serve a notice to consumer before serving the subpoena.

Defendant denies seeking tax returns and asserts that Norred's records are potentially relevant to Plaintiff's damages claim.

Plaintiffs failed to engage in reasonable efforts to meet and confer before filing the motion. However, because trial is approaching the Court will address the merits of the motion instead of requiring additional meet and confer efforts.

A subpoena must be accompanied by a "notice to consumer" if it seeks "personal records," which are defined as follows by Code of Civil Procedure section 1985.3, which includes records maintained by an "accountant":

"(1) 'Personal records' means the original, any copy of books, documents, other writings, or electronically stored information pertaining to a consumer and which are maintained by any 'witness'

	which is a physician, dentist, ophthalmologist, optometrist, chiropractor, physical therapist, acupuncturist, podiatrist, veterinarian, veterinary hospital, veterinary clinic, pharmacist, pharmacy, hospital, medical center, clinic, radiology or MRI center, clinical or diagnostic laboratory, state or national bank, state or federal association (as defined in Section 5102 of the Financial Code), state or federal credit union, trust company, anyone authorized by this state to make or arrange loans that are secured by real property, security brokerage firm, insurance company, title insurance company, underwritten title company, escrow agent licensed pursuant to Division 6 (commencing with Section 17000) of the Financial Code or exempt from licensure pursuant to Section 17006 of the Financial Code, attorney, accountant, institution of the Farm Credit System, as specified in Section 2002 of Title 12 of the United States Code, or telephone corporation which is a public utility, as defined in Section 216 of the Public Utilities Code, or psychotherapist, as defined in Section 1010 of the Evidence Code, or a private or public preschool, elementary school, secondary school, or postsecondary school as described in Section 76244 of the Education Code.” Here, the subject subpoena to Plaintiffs’ accountant was served without a notice to consumer, so it must be quashed under Code of Civil Procedure section 1985 et seq.
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